

State vs Rakesh Kumar Pandey on 11 December, 2025

IN THE COURT OF MS. SHEETAL CHAUDHARY PRADHAN
ADDITIONAL SESSIONS JUDGE-02, SOUTH-EAST DISTRICT
SAKET COURTS, NEW DELHI

State Vs. Rakesh Kumar Pandey & Ors.
SC No. : 41/2018
FIR No.: 430/2016
U/s : 452/323/506/34 IPC
& 3(1)(r)(s) SC/ST Act
PS : Jaitpur

Brief Details Of The Case

FIR Number	:	430/2016
Offence complained of	:	U/s 452/323/506/34 IPC U/s 3 (1) (r) (s) SC/ST Act
Date of Offence	:	07.08.2016
Name of the complainant	:	Dr. Sita Ram Paswan S/o Late Sh. Ram Prasad R/o H.No.A-357, Jaitpur Delhi 110044
Name of the accused	:	1). Rakesh Kumar Pandey S/o Sh. Nand Kishore Pa R/o H.No.D-74, Ismailpu Jaitpur Extn. Pt-1, New 2). Angad Raj Sharma S/o Sh. Jai Dev Prasad R/o H.No.A-87, Saurabh Jaitpur Road, Badarpur, 3). Dev Raj Sharma S/o Sh. Jai Dev Prasad R/o H.No.E-1, Hari Naga Jaitpur Road, Badarpur,

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Plea of the accused	:	Pleaded not guilty	
Date of Institution	:	25.01.2018	
Date of Arguments	:	10.12.2025	
Date of Judgment	:	11.12.2025	
Decision	:	All three accused persons stand acquitted.	

JUDGMENT

1. Accused Rakesh Kumar Pandey, Angad Raj Sharma and Dev Raj Sharma faced trial in this case, for committing offence punishable U/s 452/323/506/34 IPC & U/s 3(1)(r)(s) SC/ST Act.

2. Prosecution case, as per charge-sheet is that, on the complaint dated 08.08.2016 for the incident dated 07.08.2016, rukka was prepared and the FIR was registered. The FIR initially was registered for the offence under Section 323/452/506/34 IPC at PS Jaitpur and the initial investigation was conducted by the concerned PS. Subsequently, upon the allegations pertaining to SC/ST Act the investigation was marked to ACP Dhal Singh. During investigation the site plan was prepared. Subsequently, ACP Dhal Singh visited the house of complainant, but the complainant was not found staying at the given address and several efforts were made to search the complainant and even notice u/s 160 Cr.P.C. was served to complainant to join the investigation through affixation, however, complainant was not traceable. Caste of the FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 2 of 65 complainant was got verified. Wife of the victim complainant was examined and her statement was recorded. IO also examined two witnesses namely Pankaj Kumar Singh and Ruby Jha. Further local enquiry was conducted from other witnesses namely Shashi Bhushan Singh, Sumit S/o Shishupal, Saroj, Heena and Namita Mondal, however, the aforesaid witness did not support the version of the complainant. No other eye witness was found. Accused persons were interrogated and rebutted the allegations of the complainant. During investigation accused Angad Raj Sharma provided a CD containing CCTV footage of alleged date & time of incident of his own shop alongwith certificate u/s 65 B of Indian Evidence Act. Further, during investigation IO came to know from ASI Kunji Lal Meena of PS Jaitpur that an FIR no.431/2016 u/s 420/323/341/34 IPC as a cross FIR was registered against the complainant and that complainant being accused in the aforesaid FIR was not cooperating in the investigation and NBWs was issued against complainant in the aforesaid matter.

3. The complainant in his complaint dated 07.08.2016 has stated as below:-

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4. The chargesheet in the present matter was filed U/s 323/452/506/34 IPC & Section 3 (1) (r) (s) of SC/ST Act against accused persons. Court took cognizance of the offence against accused. Proceedings under Section 207 Cr.P.C were concluded. Arguments on charge were heard and based on the contents of chargesheet, accused FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 4 of 65 persons were charged with offences punishable u/sec. 452/323/506/34 IPC & 3(1)(r)(s) of SC/ST Act to which they did not plead guilty and claimed trial. Matter was then fixed for prosecution evidence.

PROSECUTION EVIDENCE

5. Prosecution has examined 12 witnesses in support of its case: -

Sr. No. Name of the Witness Crux of deposition PW-1 Ms. Ruby Jha The witness was working as Security Guard (eye witness) at Delhi Public School, R.K. Puram, New Delhi and did not support the prosecution.

The witness did not support the story of prosecution and was declared hostile.

PW-2 Sh. Pankaj Kumar Singh The witness was working in company (eye witness) "Master Art" and did not support the prosecution.

The witness did not support the story of prosecution and was declared hostile.

PW-3 DCP Dhal Singh To prove the various stages of investigation (IO) being carried out by witness. He tendered the following documents in his evidence:

a) copy of order of handing over of investigation Ex.PW3/A

b) Notice u/s 91 Cr.P.C. Ex.X1, Ex.X2, Ex.X3 and Ex.X4

c) Seizure memo of CD containing CCTV footage of incident Ex.PW3/Z1, Ex.PW3/Z2, Ex.PW3/Z3 and Ex.PW3/Z4 FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 5 of 65

d) Site plan Ex.PW3/ZZ

e) Application for seeking extension period for finalizing the investigation Ex.PWA-1, Ex.PWA-2, Ex.PWA-3 and Ex.PWA-4

f) Notices issued to accused persons Ex.PW3/A-5 to Ex.PW3/A-15

g) Intimation regarding case was sent to DM PS Amar Colony Ex.PW3A-16

h) Notice U/s 91 Cr.P.C. to Tehsildar/ Executive Magistrate Ex.PW3/B

i) Acknowledgment of CD Ex.PW3/Z5

j) Notice upon one Suresh Kumar dated 25.10.2019, 18.01.2020 & 20.01.2020 from Ex.PW3/Z6 to Ex.PW3/Z8

k) Examination report regarding CD and DVR Ex.X and Ex.Y respectively The witness has been duly cross-examined.

PW-4 Dr. Sita Ram Paswan To prove the complaint upon which the FIR (complainant) in the present matter was registered being the complainant. He tendered the following documents in evidence :-

a) complaint Ex.PW4/A The witness has been duly cross-examined.

PW-5 Smt. Meera Kumari To prove the material essentials of the (wife of complainant) offences alleged.

This witness has been duly cross-examined.

PW-6 Sh. Qamruzzaman, Clerk To prove the caste certificate and SDO West Officer verification certificate of complainant Dr. Muzafferpur Sita Ram Paswan and he tender the Bihar following document.

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a) Register Ex.PW6/A

b) Verification report Ex.PW6/B

c) Verification report from SDO of caste certificate of Dr. Sita Ram Paswan Ex.PW6/C

d) Caste certificate of complainant Ex.PW6/D.

e) Certified documents Ex.PW6/E (colly) PW-7 HC Pauhap Singh To prove his endorsement on rukka (Duty Officer) Ex.PW7/A, DD No.49 Ex.PW7/B, computerized copy of FIR Ex.PW7/C and

certificate U/s 65 B of Indian Evidence Act Ex. PW7/D. This witness has been duly cross-examined.

PW-8 SI Yashpal Singh To prove the various stages of investigation (accompanied the IO ASI being carried out by the witness. He Kunji Lal) tendered the following documents in his evidence:

a) Site plan Ex.PW8/A.

b) Statement of Pankaj Kumar Singh and Ruby Jha- Mark X and Mark Y. The witness has been duly cross-examined.

PW-9 Sh. Bhunesh Kr Sharma, To prove MLC prepared by Dr. Deepshikha MRT AIIMS Trauma Chauhan Ex.PW9/A and Ex.PW9/B of Centre injured persons Sita Ram and Meera.

PW-10 SI Kunji Lal Meena (IO) To prove the various stages of investigation being carried out by the witness. He tendered the following documents in his evidence:
a) Rukka Ex.PW10/A
The witness has been duly cross-examined.

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PW-11 ASI Nirdesh Kumar (IO) To prove the various stages of investigation being carried out by the witness.
The witness has been duly cross-examined.
PW-12 Inspector Lalit Kumar (IO) Witness deposed that upon receiving the case file for further investigation, he had enquired from the complainant, thereafter, after his transfer from PS Jaitpur he had handed over the case file to MHC(R) PS Jaitpur.
The witness has been duly cross-examined.

6. Vide statement u/sec. 294 CrPC recorded on 30.01.2025, the accused has admitted the genuineness of the following documents: -

S. No.	Documents	Admitted
1.	DD No. 41B dated 18.10.2017 recorded by ASI Nirdesh Kumar.	Ex.A
2.	DD No. 26B dated 11.11.2017 recorded by ASI Nirdesh Kumar.	Ex.A-1
3.	DD No. 86A dated 07.08.2016 recorded by HC Jagdish.	Ex.A-2
4.	DD No. 89A dated 07.08.2016 recorded by HC Jagdish.	Ex.A-3
5.	FSL Report No. SFSL/DLH/2159/C0/287/19 dated 26.08.2019 prepared by Kamlesh Kumar/ FSL.	Ex. X
6.	FSL Report No. SFSL/DLH/2159/ PHY/309/19/T dated	Ex. XY

30.09.2019 prepared by Assistant Chemical Examiner.

7. Statement of Ved Prakash dated 11.02.2019 regarding Ex. A-4 seizure of CD.

8. Statement of Ct. Mohit who deposited the case property to Ex. A-5 FSL.

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7. Prosecution witnesses deposed regarding the offence in the present matter as follows :-

8. PW-1 Ms. Ruby Jha (eye witness) deposed that she used to work as security guard at Delhi Public School, R.K. Puram, New Delhi. She did not know anything about the present case. She knew the complainant Dr. Sita Ram as his clinic was located at Jaitpur Market. He visited the clinic of the complainant once and twice. She did not know the accused persons namely Rakesh Kumar Pandey, Angad Raj Sharma and Devraj Sharma.

The witness did not support prosecution story and was declared hostile.

9. PW-2 Sh. Pankaj Kumar Singh (eye witness) deposed that he was working in a company "Master Art". He did not know about this case, however, he knew Dr. Sita Ram who told him to sign on some papers. Apart from above signing of documents, he did not know anything. He did not know the accused persons namely Rakesh Kumar Pandey, Angad Raj Sharma and Devraj Sharma.

The witness did not support prosecution story and was declared hostile.

10. PW-3 DCP Dhal Singh deposed that on 29.09.2017, he was posted as ACP at sub-division Sarita Vihar. In this case, he was handed over the investigation of the present matter. Copy of the same was Ex.PW3/A. He obtained sanction from the DCP/SED to add section of SC & ST Act FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 9 of 65 on 28.09.2017. Accordingly, he had investigated the matter. He had served notice u/s 91 CrPC to accused persons Devraj Sharma, Angad Raj Sharma, Rakesh Kumar Pandey to provide hard-disk/cctv footage and the said notices was Ex.X-1, Ex.X-2, Ex.X-3 and Ex.X-4. Accused Angad Raj Sharma had provided three CDs containing CCTV footage of the incident and one hard-disk, to him regarding the incident along with certificate of 65B of Indian Evidence Act which was seized by him vide seizure memo was Ex.PW3/Z-1, Ex.PW3/Z-2, Ex.PW3/Z-3 and Ex.PW3/Z-4. He had visited the spot on 15.02.2019 along with his staff and had prepared the site plan at the instance of the complainant which was Ex.PW3/ZZ. He had made request for granting of extension period of finalizing the investigation of the present case and applications were exhibited as Ex.PWA-1, Ex.PWA-2, Ex.PWA-3 and Ex.PWA-4. Notices were issued to accused persons and the said notices were exhibited as Ex.PW3/A-5, Ex.PW3/A-6 Ex.PW3/A-7, Ex.PW3/A-8, Ex.PW3/A-9, Ex.PW3/A-10, Ex.PW3/A-11, Ex.PW3/A-12, Ex.PW3/A-13, Ex.PW3/A-14 and Ex.PW3/A-15 on 12.10.2017, 20.10.2017, 24.11.2017, 06.12.2017, 02.12.2017 and 13.11.2017. Accused persons joined investigation on 15.11.2017 and 18.11.2017. Intimation regarding the case was sent to District Magistrate Amar Colony on 01.01.2018 and the same was Ex.PW3/A-16. On 11.01.2018, he had served notice u/s 91

Cr.P.C to the Tehsildar/Executive Magistrate to verify the caste of the victim. Notice of the same was Ex.PW3/B. Caste verification of the victim was done on 12.01.2018. During investigation, he had recorded FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 10 of 65 the statement of public witnesses Meera Kumari, Chander Mohan, Pankaj Kumar Singh and Ruby Jha under Section 161 Cr.P.C. After completing the investigation, chargesheet was submitted before the court on 28.01.2018. He further deposed that on 05.03.2019, he had sent the CDs and hard-disk to FSL through Ct. Mohit vide RC No.14/21/19 for its authenticity and retrieving data from hard-disk and same was Ex.PW3/Z-5 (running into 4 pages). He had served a notice to one Suresh Kumar on 25.10.2019, 18.01.2020 and 20.01.2020 to join investigation and the said notices were Ex.PW3/Z-6, Ex.PW3/Z-7 and Ex.PW3/Z-8. He had recorded statement of SI Ved Prakash and Ct. Mohit Kumar during investigation. Further, supplementary chargesheet was also filed by him after obtaining examination report regarding CD and DVR from FSL. The said examination reports were exhibited as Ex.X and Ex.Y. During examination witness correctly identified all accused persons. Subsequently, one CD was taken out from judicial file and contained, the footage of presence of accused in his office on the day of incident. The CD was Ex.P-1. It contained three videos namely Cho2_20160807231819 shop (1) mp4, Cho2_20160807231819 shop (1) mp4 and Cho2_20160807231819 shop (1) mp4. There was no incriminating fact, visible against the accused persons, in the three videos, present in said CD and the court has observed as above. During cross examination on behalf of accused Angad Raj Sharma and Dev Raj Sharma PW-3 deposed that he was the 3rd IO and investigation was marked to him on 29.09.2017. The certificate of SC of the FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 11 of 65 complainant was verified by the previous IO. It was correct that one CD of the conversation pertaining to Suresh and Seema was handed over to him. He had heard the above said CD provided to him by accused Angad Raj. He had also the writing conversation of the CD. He further deposed that it was correct that the CD provided by accused Angad Raj in which accused has seen in his medical store at about the time of incident. There was some variation between presence of the accused and time of incident. The place of occurrence and medical store of the accused was situated between 50-60 meter. The place of incident was road and at the time of incident no public persons were passing by.

During cross examination on behalf of accused Rakesh Kumar Pandey PW-3 deposed that it was correct that during entire investigation conducted by him complainant Sita Ram Paswan never joined the investigation. He further deposed that he had gone through the complaint which was on the file received from the previous IO. It was correct that there was no specific allegation against any of the accused by name who had given castiest remarks upon the complainant or his wife as per the statement of asal tehrir. The name of the accused persons are mentioned in the complaint. It was correct that during investigation on 11.01.2018 He had issued a notice U/s 91 Cr.P.C. to the Tehsildar/Executive Magistrate Kalkaji South Delhi in order to know whether the caste Dusadh was notified in the area of NCT of Delhi and complaint ever mentioned falls into the category of scheduled caste. It was also correct FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 12 of 65 that he had received the reply of that notice on 12.01.2018 from the office of Tehsildar Kalkaji wherein they had stated that caste Dusadh was not in the list of scheduled castes notified for Delhi. The reply of the Tehsildar Kalkaji namely Aneesh Yadav was Ex. PW3/D1. During investigation he came to know that there was dispute between accused persons and complainant over some money dispute. He had no knowledge that complainant was involved in a cheating case

before handing over investigation to him.

11. PW-4 Dr. Sita Ram Paswan (complainant) deposed that on he was a Doctor by profession. On 07.08.2016 at about 10:45 pm, he was present at his home and he was eating foods and that time his wife had gone outside to take his dog out for a walk. Suddenly, six persons came outside his house on 3-4 bikes. At that time accused Rakesh Kumar Pandey, Angad Raj Sharma, Dev Raj Sharma and elder brother of accused Rakesh Kumar Pandey whose name he don't know, and one more person namely Mahesh Yadav and Purnendu Kumar came outside his house. All the aforesaid persons started hurling abuses to him and abused by passing castiest remarks and they said " saale bhangi, chamar, dushad, harijan, tu bahar ghar se nikal, tujhe jaan se maar denge, aur gandi gandi gaali de rahe they, aur maa behan ki gali de rahe they. Meanwhile his wife upon hearing the noises immediately ran towards the house and objected to the behaviour of the accused persons and told them "kyon gali de rahe ho". Thereafter, accused persons alongwith FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 13 of 65 aforesaid persons told his wife "apne aadmi koh bahar nikal". Thereafter his wife got scared and entered in the house and immediately bolted the door. Thereafter accused persons gave fist and leg blows continuously on the door of his house because of which they broke open the door. Thereafter, accused persons entered his house and started giving him fist and leg blows and again abuse him in aforesaid abusive language by passing cattiest remarks. They gave him blows by hockey and danda because of which he suffered injury in his leg and they fractured his leg. He had fractured for 45 days in his leg. Thereafter, accused persons dragged him out of his house and took him in the gali and again started giving him beating in the street outside his house. They had torn off all his clothes and disrobed him and he was only wearing his undergarments. Due to the aforesaid incident several public persons gathered on the spot. At that time two persons / patience had come to visit him to show themselves namely Ruby Jha and one Pankaj Kumar Singh to show their child to him. At that time, none of the public persons intervened or saved him from the accused persons. Meanwhile his wife made a call at 100 number. Thereafter, all the accused persons ran away from the spot and left him and while leaving they all said " jaan se maar denge agar dubera dikh gaya". Thereafter, police officials reached the spot and took him and his wife to AIIMS Trauma Center for medical. Thereafter, they got discharged from the hospital and came back to the house in the morning. Thereafter, none of the police officials supported us and at that time since he had suffered fracture in his leg he was not FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 14 of 65 able to move much. No person helped them and thereafter, he gave his written complaint to the police Ex.PW4/A. Police officials had inquired about the matter from him in the present matter. In the aforesaid matter even being aggrieved none of the police official helped him and in fact an FIR was registered upon him. He had shown the place of incident to the police and site plan was prepared by the IO. He had also given copy of his caste certificate to the IO. The copy of the same was Mark A1. He have signed the copy of his caste certificate. He had the original caste certificate with him at his house but he had not brought the same. Thereafter, due to aforesaid incident he was scared and for almost two years was running away from his house. Thereafter, he even appeared before the SC/ST Commission and only after his several requests the present provisions under the SC/ST Act were added by the police. Police had inquired about the matter from him. He had not handed over any CCTV footage to the IO.

12. During cross examination on behalf of accused Angad Raj Sharma and Dev Raj Sharma PW-4 deposed that he was Rural Medical Practitioner (RMP). He was knowing the aforesaid accused persons at least 5-6 years prior to the incident. Since his nursing home was next to their chemist shop. The house no. A-357, Jaitpur Extn. Pt-1, New Delhi 110044 was given to them by his father-in-law to stay and was not owned by him. It was correct that prior to the date of incident accused Angad Raj Sharma and Dev Raj Sharma were known to him, since they FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 15 of 65 were working in the same market and they had never indulged in any kind of fight with him prior to the incident. To his knowledge, the chemist shop of the accused persons used to remain open from morning time till 12 midnight. His nursing home was around 15-20 shops away from the shop of the accused persons. Presently, there are two cases of cheque bouncing and one case of cheating pending against him. The cheating case was registered against him as a cross-case by accused Rakesh Kumar Pandey who was the complainant in the aforesaid matter having FIR No.431/2016 PS Jaitpur of same date. His complaint Ex.PW4/A was in his handwriting and written by him. He was aware about the contents of his complaint Ex.PW4/A. It was correct that in his complaint Ex.PW4/A, he had written that he had taken money and he shall return the same since he was not having money with him at that time. In the aforesaid complaint he was referring to the money which was pending qua the medicines that he had taken from accused Rakesh Kumar Pandey was the employee of Angad Raj Sharma in his chemist shop. He had given two cheques to accused Rakesh Kumar Pandey for a sum of Rs.2 Lakh and Rs.3 Lakh respectively. The aforesaid cheques were security cheques. He was declared proclaimed offender in both his cheque bouncing cases and even in his cheating case. He had not appeared before the Court in aforesaid cases as he was apprehending threat to his life by the accused persons. It was correct that he was having one neighbourer namely Basant Sharma who was residing 3-4 houses away from his house at the time of incident. He had left his house FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 16 of 65 after six months of the present incident of quarrel. He had lived in the premises since the year 2005 till the year 2016. He further deposed that it was correct that he was knowing all the persons who were living in his locality at that time. There was no CCTV camera installed in his house at the time of incident. No house was having CCTV camera in that street at that time. He did not know if Sh. Basant Sharma was having CCTV camera installed in his house at the time of incident. It was correct that Sh. Basant Sharma was having his house in the same lane as that of mine. He had seen the shop of accused Angad Raj Sharma and Dev Raj Sharma and it was correct that their shop has a CCTV camera installed. He further deposed that he did not know the amount which was pending towards him qua the medicines which he had taken from the medical store of accused persons through accused Rakesh Kumar Pandey. He further deposed that accused Dev Raj Sharma and Angad Raj Sharma had never asked for the money which was pending qua the medicines purchased by him. He had not placed on record any receipt regarding the purchases of medicines which was taken by him from the shop of accused persons. No person from the public intervene to save him during the quarrel with the accused persons. It was correct that one person namely Suresh had come on the spot and intervene in the quarrel to save him. Aforesaid person Sh. Suresh was called by his wife. Suresh and Ruby were known to each other. He knew aforesaid person Suresh since the time he had shifted to Delhi in the year 2003. He had never filed any complaint against any of the accused persons to any authority regarding FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 17 of 65 him apprehension of being hurt by them at any point of time. He did not know if on his letter

head he had mentioned him self as a MBBS Doctor. He had never given any cheque or bank transfer in the account of accused Rakesh Kumar Pandey before the present incident in lieu of payment towards purchase of medicines.

During cross examination on behalf of accused Rakesh Kumar Pandey PW4 deposed that he was registered as RMP around the year 2000. He shifted to Delhi in the year 2003. He did not have children. The house in which he was residing was of 50 Sq. Yards. and was having ground, first and second floor. He alongwith his wife was residing on the ground floor. On the first floor tenants were residing and on the second floor his sister-in-law i.e. wife of the brother of his wife (sala) was residing. The name of the tenant who was residing on the first floor, he did not remember but the name of their son was Pawan. The tenants was kept by his father-in-law. He was having his nursing home in the area of Jaitpur. He had never worked at Safdarganj Hospital. He was knowing accused Rakesh Kumar Pandey two years prior to the incident. He did not know the residential address of accused Rakesh Kumar Pandey but he was employee of Sharma Medical Store which was run by accused Angad Raj Sharma being the owner. He knew Sh. Shiv Shankar Paswan who was the doctor in Safdarganj Hospital and he knew him 3-4 months prior to the present incident. He was told by his wife that the accused persons had come outside the house on different bikes and were hurling abusing FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 18 of 65 and passing castiest remarks as his wife was outside the house since she had taken his dog for a walk. The cheque bouncing cases which was pending against him was filed by one Dr. Manish and another case filed by Sh. Sunil Kumar. He know one lady namely Sangeeta who was bhabi of Purnendu Kumar. He did not know if he had issued a cheque to aforesaid lady namely Sangeeta. He had not disclosed the name of other persons apart from the accused persons in his complaint since he was not aware about their names at that time and came to know the same later on. He was informed about the name of other persons who were accompanying the accused persons by Sh. Suresh Kumar who tried to intervene in the quarrel. He was not sure if he had mentioned regarding the name of Sh. Suresh Kumar in his complaint Ex. PW4/A. He had mentioned regarding the language used against him by the accused persons when they had passed casttiest remarks i.e. " saale bhangi, chamar, dushad, harijan, tu bahar ghar se nikal, tujhe jaan se maar denge, aur gandi gandi gaali de rahe they, aur maa behan ki gali de rahe they" in his complaint Ex. PW4/A. He had told the police regarding the aforesaid language but he was told by the police official to only mentioned in his complaint "jati suchak shabad istemal kare". During cross examination PW4 was confronted with the statement Ex.PW4/A wherein aforesaid lines "saale bhangi, chamar, dushad, harijan, tu bahar ghar se nikal, tujhe jaan se maar denge, aur gandi gandi gaali de rahe they, aur maa behan ki gali de rahe they" wa s not mentioned. Further, PW4 deposed that the aforesaid abuses and aforesaid language was used FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 19 of 65 by the accused persons against him while they were standing on the road just outside his house and he could hear the same while sitting inside his house in the room which was adjacent to the road. He had stated in his complaint Ex.PW4/A the fact that his wife had told the accused persons "kyon gali deh rahe ho". During cross examination PW4 was confronted with statement Ex.PW4/A wherein the aforesaid fact was not mentioned. When the incident occurred his sister in law who was residing on the second floor and tenants who was residing on first floor also came down. He did not remember if he had stated in his complaint Ex. PW4/A the fact that his wife was told by accused persons "apne aadmi koh bahar nikal". During cross examination PW4 was confronted with

statement Ex.PW4/A wherein the aforesaid fact was not mentioned. When his wife had taken his dog out for walk, the main door of the house was not bolted. He had not stated in his complaint that "thereafter my wife got scared and entered in the house and immediately bolted the door. Thereafter, accused persons gave fist and leg blows continuously on the door of my house because of which they broke open the door" as stated by him in his examination in chief. It was correct that he had given two cheques to the accused Rakesh Kumar Pandey but not for the aforesaid purpose and were only security cheques. He had never filed any complaint against the accused Rakesh Kumar Pandey to any police authority regarding misuse of cheques or return of cheques by him. He had never sent any legal notice to the accused Rakesh Kumar Pandey through his lawyer to take back my cheques. His wife was a home maker FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 20 of 65 and was not working. He had written in his complaint that accused persons given him beating with hockey and danda. During cross- examination PW4 was confronted with the statement Ex.PW4/A wherein aforesaid lines "they had given beatings with hockey" was not mentioned. He was given medical aid and plaster was done on his leg at AIIMS Hospital on the same day. He did not know if medical documents regarding the same were annexed with judicial record. Police officials had not written his statement in the present matter. He was never called at police station by the police officials to inquire about the matter. He belong to "dushad" caste which belong to SC category and he did not know if it was mentioned in the list of caste which falls under SC category. The castiest remarks which were passed against him by the accused persons were heard by Pankaj Kumar Sing and Ruby Jha. He had written in his complaint that the aforesaid persons namely Pankaj Kumar Singh and Ruby Jha were present at the spot when the accused persons used castiest remarks against him. During cross examination PW4 was confronted with statement Ex.PW4/A wherein it was not so recorded. He did not remember if he had written in his complaint Ex.PW4/A that the accused persons had torn his wearable clothes. During cross examination PW4 was confronted with statement Ex.PW4/A wherein it was not so recorded. He did not remember if he had handed over his torn clothes to the police. Police reached at the spot after half an hour after making call at 100 number. He had stated in his complaint that "jaan se maar denge agar dubera dikh gaya". During cross FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 21 of 65 examination PW4 confronted with statement Ex. PW4/A wherein it was not so recorded. It was correct that he was apprehended by the police at the instance of accused Rakesh Kumar Pandey from the area of Ganesh Nagar when he was declared proclaimed offender by the court in the matter pending against him.

13. PW-5 Smt. Meera Kumari (wife of the complainant) deposed that on 07.08.2016, at about 10:45 pm he was outside of her house with her dog for walking the dog. Her husband was inside their house. At that time, six persons came at her house including Rakesh Kumar Pandey, Angad Sharma and Dev Raj Sharma and other persons were also came alongwith accused persons. The accused persons came on bike. Accused persons were abusing to her husband. They abusing "maa behan ki gaali". They also pass castiest remarks as "chamar and bhangi" to her husband. All accused persons entered into her house and started beating to her husband. Accused persons had closed the gate of the room in which her husband was sitting. She knocked the door and somebody had opened the door from inside and then she immediately entered in the house. All accused persons were beating her husband and she had seen them inside her house. Accused Rakesh Pandey dragged from house her husband and the other accused persons were also dragging her husband. Accused Dev Raj and

Angad were abusing her husband and they did not drag her husband. She had tried to intervene between her husband and accused persons. She made a call to the police at 100 number. Her FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 22 of 65 husband dragged by the accused persons and tried to sit him on their bike. She also made a call to Suresh who had immediately reached at the spot. Suresh requested the accused persons to leave her husband but they did not allow her husband to leave from their clutches. After some time police reached at the spot. Before coming police at spot all accused persons ran away from the spot. During examination witness correctly identify all three accused persons who were present in the court. Other accused persons were not present today in the Court. She could identify only one person from among them who was selling golgappa on stall in front of medical shop of the accused. Police had inquired about the matter from her and recorded her statement. No person from the public intervene in the matter or rescue her husband. Several public persons have gathered on the spot.

During cross examination on behalf of accused Rakesh Kumar Pandey PW5 deposed that they have been residing in the aforesaid house since the year 2005. Her husband was a Doctor. He was RMP. She was 12 th pass. The aforesaid house was of 50 Sq. Yds. and has ground, 1 st and 2nd floor. At the time of incident, she alongwith her husband were residing on the ground floor. On the first floor tenants were residing and on the second floor her bhabhi was residing. At the time of incident the tenant who was residing she did not remember the name but the name of son was Pawan. Her husband was running clinic in the year since 2007-08. The clinic was about 10 minutes away from her house. She was knowing FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 23 of 65 accused Rakesh Kumar Pandey prior to the incident and was acquainted with him since she had seen him coming to meet her husband at his clinic. Prior to the incident her husband was having cordial relation with accused Rakesh Kumar Pandey. Accused Rakesh Kumar Pandey was employee of accused Dev Raj Sharma and Angad Sharma. She did not know any person with the name Shiv Shankar Paswan. Police had recorded her statement and inquired about the matter from her. They have recorded her statement only once. Her husband has never worked at Safdarganj Hospital. She did not remember if she had stated in her statement to the police that her husband had worked at Safdarganj Hospital. During cross examination, PW-5 was shown her statement recorded U/s 161 Cr.P.C. wherein it was so recorded. The statement of witness U/s 161 was Ex.PW5/D1. When the accused persons had come to their house, the main door of the house was not bolted as she was outside the house. When, the accused persons were giving beatings to her husband, the tenant who was residing at first floor and her bhabhi who was residing at second floor had come down. Aforesaid person did not intervene to save her husband. The accused persons had abused to her husband and passed castiest remarks while they were outside their house. The aforesaid castiest remarks and language was heard by all the persons who had gathered at the spot including their tenants. Again said, she could not say if the castiest remarks passed by the accused persons were heard by any public person since it was night time and mostly people were inside their house. It was correct that several criminal cases FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 24 of 65 were pending against her husband. It was correct that her husband was declared proclaimed offender twice by the court in case FIR No.431/2016 U/s 420/34 IPC PS Jaitpur. She did not remember if she had stated in her statement that the accused persons had gone inside the house and bolted the door from inside. Police arrived at the spot after 20 minutes. She did not know the name of public persons or neighbours who gathered at the spot but

she know the name of their children. Person namely Suresh stays two lanes away from our lane. Aforesaid person namely Suresh came to their house alongwith his son namely Babloo on bike. She did not know any lady with the name Sangeeta. It was correct that one Dr. Manish and one Sh. Mahinder Singh had filed cases against her husband. It was correct that her husband had issued two cheques of amount of Rs.2 Lakhs and Rs.3 Lakhs to accused Rakesh Kumar Pandey. They had to take money from accused Rakesh Kumar Pandey. Her husband had never given any legal notice to the accused Rakesh Kumar Pandey for the aforesaid cheques. Her husband had never filed any complaint against the accused before any authority. She knew the accused Rakesh Kumar Pandey 7-8 months prior to present incident. She did not know about the family members of Rakesh Kumar Pandey. Her husband had left the premises as accused persons used to extent threat to him. Her husband had never filed any complaint against the accused persons when they extended threats to them.

FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 25 of 65 During cross examination on behalf of accused Angad Raj Sharma and Dev Raj Sharma PW-5 deposed that she had seen when the accused persons had given beatings to her husband and when the accused persons dragged her husband outside the house. The gate of her house was not bolted when accused persons came to their house. The house was of 50 Sq. Yards and has two rooms on the ground floor where they were residing. She was not knowing accused Angad Raj Sharma and Dev Raj Sharma prior to incident and had seen them only on that day. It was correct that she was not knowing the name of accused persons on the day of incident. She was told by her husband. It was correct that accused Dev Raj Sharma and Angad Sharma were not forcing her husband to sit on any bike. She knew their neighbourer namely Basant Kumar. It was correct that aforesaid person Basant Kumar has CCTV cameras installed in his house. When person namely Suresh reached at the spot, all accused persons were present. Aforesaid person namely Suresh had seen the accused persons on the spot. I knew woman namely Ruby Jha since she was the patience of her husband. It was correct that Ruby Jha was known to Sh. Suresh. She did not know what was the occupation of Ruby Jha. She had not stated the name of any public person to the police official who had witnessed the incident. She had not told the police official to seized the CCTV camera which was available in the locality.

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14. PW-6 Sh. Qamruzzaman Clerk SDO West Officer Muzafferpur Bihar deposed that he have deputed to prove the caste certificate and verification report of caste certificate of Sita Ram Paswan issued on 06.12.1996. He had brought the register. As per their register name of accused Sita Ram Paswan mentioned at serial no.795 dated 12.06.1996 and his caste mentioned as Dusadh. Copy of above said register was Ex. PW6/A. Circle officer also verified about the caste of Sita Ram Paswan. His verification report was Ex.PW6/B. The verification report of caste certificate of Sita Ram Paswan issued by SDO West Muzafferpur dated 05.08.2017. Same was Ex. PW6/C. As per verification report Sita Ram Paswan belongs to Village Mehmada, Block Motiput, Distt. Muzafferpur Bihar and his caste is Dusadh and he is living in Delhi. The caste certificate issued by Office of SDO Muzafferpur West Dated 12.06.1996 as per caste certificate of Sita Ram Paswan he belongs to scheduled caste. The caste certificate of Sita Ram Paswan Ex. PW6/D which was already as MarkA1. He had brought the certified documents and same are Ex. PW6/E (Colly). The caste of complainant

Dusadh is belongs to scheduled caste in Bihar.

15. PW-7 HC Pauph Singh deposed that on 08.08.2016, he was posted as Duty Officer in the PS-Jaitpur and his duty hours were from 8 am to 4 pm. On that day, at around 11 am, ASI Kunji Lal produced one rukka to him for the registration of FIR. On the basis of the said rukka, FIR was got registered through CCTN Operator. He had also made the FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 27 of 65 endorsement on the rukka which was Ex.PW7A. He had also made the entry with regard to the registration of the FIR in Rojnamcha Register vide DD No. 49 and the copy of the same was taken on record which was Ex.PW7/B (OSR). The computerized copy of the FIR was Ex.PW7/C. He also issued certificate u/sec. 65B of Indian Evidence Act, which was Ex.PW7/D. After registration of the FIR, copy of the FIR and rukka was handed over to ASI Kunji Lal.

During cross examination on behalf of accused persons PW7 deposed that ASI Kunji Lal brought the rukka in the police station. He got registered the FIR at about 1.50 pm on the same day.

16. PW-8 SI Yashpal Singh deposed that on 08.08.2016, he was posted at PS Jaitpur. On that day, ASI Kunji Lal had handed over to him copy of the FIR and rukka alongwith some other documents. Thereafter, he went to the spot i.e. H. No. A-357, Jaitpur Ext. Part-I, Delhi, where he met the complainant Sita Ram and his wife Mira Kumari. He made inquiries from the said persons. He prepared the site plan at the instance of complainant Sita Ram which was Ex.PW8/A. He recorded supplementary statement of complainant Sita Ram and recorded statement of his wife Mira Kumari. Thereafter, he came back to the police station. On 26.08.2016, he visited the house of complainant where Pankaj Kumar Singh and Ms. Ruby Jha were also present there. After inquiry, he recorded statement of Pankaj Kumar Singh and Ms. Ruby FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 28 of 65 Jha. The statement of Pankaj Kumar Singh and Ms. Ruby Jha was already 'Mark X and Mark Y' and the contents of the said statements were written by him as they have stated the said facts mentioned therein. Thereafter, he came back to police station. Thereafter, he handed over the case file to MHC(R) as he was transferred to some police station.

During cross examination on behalf of accused persons PW-8 deposed that he received rukka from ASI Kunji Lal at about 2.30 pm. The distance between the police station and house of the complainant was around 2.5 to 3.00 km. He did not remember his reaching time at the house of complainant. He did not meet any other family member/ public persons at the house of complainant on 08.08.2016 except complainant and his wife. He did not notice as to whether any CCTV Cameras were installed at the house of complainant or in the gali. He did know remember the exact time spend by him at the house of complainant but it was evening time. It was correct that site plan does not bear the signature of complainant. He did not remember as to whether on 08.08.2016, the complainant and his wife told the names of Pankaj Kumar Singh and Ms. Ruby Jha as the witnesses of the incident.

17. PW-9 Sh. Bhunesh Kumar Sharma, MRT AIIMS Trauma Center deposed that he had been deputed by Faculty Incharge, AIIMS, Delhi to prove the MLC No.000576518 of injured Sita Ram & MLC No.000576524 injured Meera prepared by Dr. Deepshikha Chauhan.

FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 29 of 65 The above said MLC were prepared by Dr. Deepshikha Chauhan. Now she had left the hospital and her present whereabouts was not known. He had worked with her during course of my service and he could identify her signature and handwriting. He had seen the above said MLCs prepared by Dr. Deepshikha Chauhan. MLC of injured Sitaram was Ex.PW9/A bearing signature of Dr. Deepshikha Chauhan and MLC of injured Meera was Ex.PW9/B bearing bearing signature of Dr. Deepshikha Chauhan. She had mentioned about the opinion on the MLCs as simple injury caused by blunt object.

18. PW-10 SI Kunji Lal Meena deposed that on 07.08.2016, he was posted at PS Jaitpur as ASI. On that day, at around 10:42 pm in the night DD No.86A and 89A was received at PS Jaitpur, Delhi. The same was pertaining to a quarrel. Upon receiving the aforesaid quarrel, he alongwith Ct. Devi Sharan he reached at the place of incident H.No.A357 Extn. Part I New Delhi at the house of complainant Dr. Sita Ram Paswan upon reaching the spot, he had not found the complainant and he had informed that the injured had already left for hospital. Thereafter, he alongwith Ct. Devi Sharan reached at AIIMS Trauma Center, Delhi where injured complainant Sita Ram Paswan alongwith his wife Meera were under treatment. The MLC of both the injured persons were collected and thereafter, he requested the complainant to give his statement who refused to give his statement at that time and told him that he will give his statement once he was better. Thereafter, the FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 30 of 65 victim/injured and his wife was discharged from hospital and on 8.08.2016, he visited the house of the complainant to enquire about the matter and the complainant handed over to him his written complaint which was already Ex.PW4/A. He prepared the rukka, and the same was Ex. PW10/A. The FIR in the present matter was registered and upon the directions of the SHO concerned the FIR in the present matter was marked to ASI Yashpal for further investigation.

During cross examination on behalf of accused Rakesh Kumar Pandey PW-10 deposed that DD no.86A was received at around 10:42 pm and another DD No.89A was received at 10:55 pm. He left the PS alongwith Ct. Devi Sharan immediately upon receiving the aforesaid DD numbers. The distance between the PS and the house of the complainant was 4-5 km and it took me around 20-25 minutes to reach the spot. When he reached the house of the complainant he did not found any public person at the spot. They remained at the house of the complainant only for about 8-10 minutes. Thereafter, he had not again visited the house of the complainant after registration of FIR. He remember only that complainant was injured in his feet but other injuries he did not remember and the same must be mentioned in the MLC. The complaint Ex.PW4/A was given to him by the complainant himself and he had not written the same. It was correct that there was an FIR registered against even the complainant namely Sita Ram Paswan upon the complaint of accused Rakesh Kumar Pandey which was a cross case.

FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 31 of 65 During cross examination on behalf of accused accused Dev Raj Sharma and Angad Raj Sharma PW-10 deposed that he had not conducted any preliminary enquiry regarding the incident before taking the complaint from the complainant in the present matter.

19. PW-11 ASI Nirdesh Kumar deposed that on 03.02.2017, he was posted at PS Jaitpur. On that day, the present case FIR No.430/2016, he had received from SI Lalit and the same was marked to him for further investigation. Upon receiving the same, he studied the case file, and thereafter, and he had reached at the house of complainant on 03.02.2017, he did not find the complainant at his house and the house was found locked. Thereafter, he had enquired about the complainant from the neighbourhood and he came to know that the complainant alongwith his family was not residing at his house. Thereafter, he had visited the house of complainant on several occasions but the complainant was not found at his house. Thereafter, he had discussed about the matter with the SHO concerned who told me that he should get the caste certificate of the complainant verified. Thereafter, to verify the caste certificate of the complainant Sita Ram Paswan he had sent Ct. Anil to Muzafferpur Bihar. Thereafter, the caste certificate of complainant was duly verified from Anumandal Padadhikari Paschim Muzafferpur Bihar, and upon verification the caste of the complainant was stated to be "Dushad" which was a scheduled caste under the Act. Thereafter, he again discussed the matter with SHO concerned and since FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 32 of 65 the allegations were pertaining to SC/ST Act, the offence U/s SC/ST Act was added and for the same SHO concerned had written a letter to ACP concerned. Thereafter, the investigation of the present matter was taken up by ACP Dhal Singh.

During cross examination on behalf of all three accused persons PW-11 deposed that whenever, he had visited the house of the complainant, he was only informed that he was not residing at his address but he never came to know regarding fresh address or whereabouts of the complainant. He had not given any notice to the accused persons to join investigation in the present matter till the time investigation was with him.

20. PW-12 Inspt. Lalit Kumar deposed that on 13.10.2016, he was posted as SI at PS Jaitpur, Delhi. On that day, further investigation was marked to him. He had received the file from MHCR. he made the contact with complainant and enquired from the complainant. Thereafter, he had been transferred from PS Jaitpur, Delhi and he had handed over the case file to MHCR PS Jaitpur, Delhi on 10.01.2017.

During cross examination on behalf of all three accused persons PW12 deposed that he had not issue any notice to accused Angad Raj and Dev Sharma.

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21. Thereafter, statement of the accused persons was recorded U/s 313 Cr.P.C. and all the incriminating evidence was put to accused persons which they denied and they have not committed any offence.

22. It has been stated by accused Rakesh Kumar Pandey that he was known to the complainant as he was practicing medical practioner and I was working as an Assistant at Sharma Medical Shop. The complainant used to often come to shop to come to take medicine. Complainant once visited the chemist shop in which I was working and offered me to place me at Safdarjung Hospital on higher salary. He also asked me to give some documents but I sought time to re-think. After two days

complainant again visited at the shop and allured me by making me believe him at he would place me at Safdarjung Hospital and I handed over my documents. After two three days, complainant again met me and told me that he has spoken to Director of Safdarjung Hospital where I will be employed and also told me that I need to pay an amount of Rs.3,00,000/- for the said job. Thereafter, complainant again fraudulently promised that he will get me employed and asked me to arrange the amount. Upon believing the complainant Dr. Sita Ram Paswan I arranged by taking loan on 2% from one person namely Sanjay Singh and handed over Rs.3,00,000/- to the complainant for the said job on 22.12.2015. I had handed over the said amount in the presence of Sanjay Singh. However, after that the complainant did not get me employed and I waited for one year and when I asked him to return my FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 34 of 65 money he would give me excuses and did not return my money. Complainant stop taking my calls. Thereafter, complainant again allured me and took Rs.2,00,000/- more from me for the said job and thereafter, falsely implicated me in the present matter when I asked him to return my money.

23. Accused Angad Raj Sharma and Dev Raj Sharma deposed that they have been falsely implicated in the present matter and they never knew the complainant.

24. Thereafter, accused namely Angad Raj Sharma and Dev Raj Sharma led defence evidence and examined three witness in their defence.

Sr. No. Name of the Witness Crux of deposition DW-1 Sh. Suresh Singh, (for This witness has been cross examined by accused Dev Raj Sharma Ld. Addl. PP for State.

and Angad Raj Sharma) DW-2 Sh. Rajesh Verma This witness has been cross examined by Ld. Addl. PP for State.

DW-3 Angad Raj Sharma
(examined u/sec.
CrPC)

This witness has been cross examined by
315 Ld. Addl. PP for State.

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25. DW-1 Sh. Suresh Singh deposed that he knew both accused Devraj Sharma and Angad Raj Sharma as they are his neighbourers and he knew them for past 30 years. On 07.08.2016 at about 10.45 pm, wife of complainant Sita Ram namely Meera gave him a call on his mobile number and informed him that there was some quarrel happening outside the gate of her house. Thereafter, he reached the house of Sita Ram i.e. A- 357, Jaitpur, New Delhi. When he reached the spot, several public persons had gathered at the spot and found accused Rakesh Kumar Pandey and some public persons were standing the outside of the house of complainant. Accused Rakesh Kumar Pandey wanted to take complainant Sita Ram along-with him but he did not know the reason for the same and complainant was refusing to sit in the car. He tried to pacify the matter between accused Rakesh Kumar Pandey and complainant Sita Ram. Accused Rakesh Kumar Pandey was also know to him as

he was employed at the shop of accused Angad Raj Sharma and Dev Raj Sharma. Thereafter, everyone went back to their house. At that time, accused Angad Raj Sharma and Dev Raj Sharma were not present at the spot. During examination, Ld. Counsel for accused persons has placed on record one CCTV footage of the incident dated 07.08.2016. During examination, a pen drive which was filed by the accused persons in the testimony of DW2 was played in the court at the request of aforesaid witness and he submits that he was present when the alleged incident occurred. During testimony, the aforesaid pen drive produced by DW2 which was already Ex.DW2/A1 was played in the FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 36 of 65 court containing alleged CCTV footage for the date of incident i.e. 07.08.2016 for the night time from 11:58 pm till 12 mid night. The aforesaid CCTV which was of black and white color was played in the court and does not have any sound and more so the video was not clear and not showing faces of any person, either the accused or the witness. The video also does not show the presence of witness DW-1 at the spot as the same was unclear.

During cross examination on behalf of Ld. Addl. PP for State DW1 deposed that he did not remember the phone number of Meera from which he called him on his mobile phone on 07.08.2016. The distance between the house of Sita Ram and he was at the distance of about 200-250 meter. When, he came to know that accused Angad Raj Sharma and Dev Raj Sharma was charge-sheeted in this case, he did not make any complaint to the SHO or any other senior officer regarding the fact that both above said accused persons were not present at the spot at the time of incident at any point of time. He did not know in whose house the CCTV camera were installed. He did not make any call at 100 number when he reached at spot when he came to know regarding the fact that the quarrel had happened outside the gate of Meera. It was correct that nor he made any complaint regarding the same.

26. DW-2 Sh. Rajesh Verma (Forensic Expert) deposed that he had examined CCTV footage as written in his report from V1 to V15. There was question if these CCTV footage were genuine or not. He opined that FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 37 of 65 these are genuine CCTV footage as recorded on DVR detail given in report. Second point was identification of persons in CCTV. He had been provided photographs of two persons one name was Angad Raj Sharma and another was Dev Raj Sharma. These are not found in any of the CCTV footage examined in his report. He had been provided photograph of three more persons namely Rakesh Kumar Pandey, Harikesh Kumar Pal and Mahesh Yadav. These are visible in CCTV footage. It was displayed on page 16 of his report. He had brought the pen drive and his report of the present matter. Pen drive was Ex.DW2/A1 and report was Ex.DW2/A2. The pen drive is of Sandisk of red and black color of 32 GB. During testimony the same objected to by Ld. Addl. PP for State as the pen drive was not supported by certificate U/s 65B of Indian Evidence Act and as mode of proof.

During cross examination of DW2 on behalf of Ld. Addl. PP for State, he deposed that it was correct that he doing private work of Forensic Expert. It is correct that the above said CCTV footage was not provided to me by any police official. The CCTV footage was belong to the incident but I do not remember the date of incident. I am not an eye witness of the incident took place between complainant and accused persons. It is correct that at the time of handing over above said CCTV footage no body had produced the affidavit that the above said CCTV footage was belongs to

incident. Vol. I have been provided a written request to do forensic examination of CCTV footage with the FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 38 of 65 information of the incident was also there. He did not know about the Angad Raj Sharma and Dev Raj Sharma prior to incident. He had been provided the photograph of Angad Raj Sharm and Dev Raj Sharma and on the basis of the same he had given opinion that Angad Raj Sharma and Dev Raj Sharma had not seen in the above said CCTV Footage. It was correct that Angad Raj Sharma had given his photograph to him. It was correct that Dev Raj Sharma had given his photograph to him. He had checked the CCTV footage which was provided to him at the instance of counsel of Angad Raj Sharma and Dev Raj Sharma. The pen drive of CCTV footage was provided to him in the office of counsel of Angad Raj Sharma and Dev Raj Sharma. His educational qualification is Graduation in Technical Qualification related to this case he had done Microsoft certified System Engineer Course and he was a Diploma Holder in Forensic Examination from the Questioned Document Examiner Shimla, Himachal Pradesh. It was correct that said persons had not produced certificate U/s 65B of Indian Evidence Act. But they provided certificate U/s 65 B. He had brought the certificate u/sec. 65B Indian Evidence Mark DW2/A-3 which was given to him by accused Angad Raj Sharma at the time of giving him CCTV footage in pendrive.

27. DW-3 accused Angad Raj Sharma (got himself examined u/s 315 Cr.P.C.) deposed that he did not know the complainant of this case Sita Ram prior to the said incident. He only met the complainant first time in the court. Sh. Rakesh Kumar Pandey was working at his shop since FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 39 of 65 2000. In the intervening night of 07.08.2016 /08.08.2016 he received a call from Harkesh Pal and he told him that mein aur Mahesh Yadav, Rakesh Pandey Ke Saath, Dr. Sita Ram sey paise lane aayee hai, waha par jhagda ho gaya, aur Rakesh Pandey ke sir par chot lagi, toh maine keha ki iss me, main kya kar sakta hu, toh unhone keha ki chot jayedda hia, toh maine keha ki dukan par le aoo, aur woh dukan par le aayee, phir mein unko AIIMS Trauma Center le gaya, and thereafter, Rakesh Pandey was admitted in AIIMS Trauma Center. On 12.08.2016, he received calls from many people and they told him that he had arrested by police and the same was published in newspaper. One day, he was called by ASI Yashpal at PS Jaitpur, and thereafter, he handed over one CD containing CCTV footage of his shop and CCTV footage of incident to the police. After seeing the same, he was allowed to left from police station. Thereafter, he was called one SI Ved Praksh from PS Badarpur, Delhi and they made enquiry from him regarding the incident and he had also provided CCTV footage of incident to him. He also met ACP and he assured me that as he was not visible in the CCTV footage, and no action would be taken against him. On 05.01.2018, he was received a call recording from Seema Sharma. On 07.03.2018, he received the copy of the charge-sheet from the Court and after going through the same he found that the statement of two public witnesses were false and the same was written in the manner as told by Suresh Singh to Seema Sharma. Thereafter, he moved to Hon'ble High Court of Delhi where Hon'ble High Court given direction to him that whatever material he have FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 40 of 65 provided to the concerned Court. Thereafter, concerned court had called the IO and give a direction to do the proper investigation of this case. During the investigation of this case police had obtained the all material from me and except one video footage placed all his material on record. He was not present when the incident had occurred. He have been falsely implicated and the same was visible in the CCTV provided by him through his witness.

During cross examination on behalf of Sh. L.D. Singh, Ld. Addl. PP for State he did not remember the mobile number of Harkesh who had called him on the intervening of 07-08 August, 2016. He did not call police on 100 number when he came to know that a quarrel had taken place between Mahesh, Rakesh and Harkesh Pal. It was correct that he did not give any complaint when he came to know that a quarrel had taken place between Mahesh, Rakesh and Harkesh Pal. It was correct that he did not make any complaint when he came to know that he was arrested by the police and the same was published in the newspaper.

28. After examining defence witness, accused persons closed their evidence and matter was fixed for final arguments. After hearing final arguments, matter was listed for judgment.

29. During the course of final arguments, complainant was summoned even through DCP concerned, but the complainant remained unserved.

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ARGUMENTS ON BEHALF OF LD. ADDL. PP FOR STATE

30. It has been argued on behalf of Ld. Addl. PP for State that the accused persons have been residing in the same locality as that of the complainant and since the complainant belongs to Dushad Caste which is a Scheduled Caste, the accused persons had been harassing the complainant and his wife. It has been argued that the complainant has stated in his complaint that on 07.08.2016 all the accused persons alongwith three more accomplice has abused the complainant Dr. Sita Ram Paswan and passed castiest remarks upon him. Further, it was the accused persons who entered into the premises of the complainant and gave him severe beatings and even threatened to kill the complainant. Further, that the wife of complainant had made a call at 100 number and thereafter they were taken to hospital for medical examination and for the same incident complainant had filed his complaint on next day of incident. It has been argued that the complainant and his wife have categorically mentioned the manner in which the accused persons committed the offence and assaulted the complainant due to which the complainant suffered injuries which are mentioned in the MCL Ex.PW9/A. It has also been argued that the allegations against the accused persons are made out and therefore, the accused persons are liable to be convicted. Ld. Addl. PP for the state has argued that in the present matter, the complainants have specifically alleged the manner in which accused persons had misbehaved with the complainant and his wife and used castiest remarks upon them and they had attacked with FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 42 of 65 danda. It has also been argued that the complainant has categorically mentioned that accused persons misbehaved with them in the presence of other persons which, was within the public view and also used the derogatory language with the intention to insult, intimidate and humiliate the complainants who belongs to the Scheduled Caste Community. He has also argued that abusive language used by accused persons was derogatory which insulted the complainant and therefore, offence is made out against all accused persons. It has been argued that the aforesaid allegations made on behalf of the complainant are of the nature by which it has lowered the image of the complainant in the society and the material placed before the court discloses commission of offence by the accused persons and therefore, all accused persons are liable to be convicted in this case.

ARGUMENTS ON BEHALF OF ACCUSED RAKESH KUMAR PANDEY

31. It has been argued by Ld. Counsel for accused Rakesh Kumar Pandey that he has been falsely implicated in the present matter by the complainant and no such incident had occurred. It has been argued that accused Rakesh Kumar Pandey was an employee of co-accused persons namely Dev Raj Sharma and Angad Raj Sharma who were running a chemist shop and that complainant Dr. Sita Ram Paswan was also running a small clinic near the chemist shop and was known to the accused Rakesh Kumar Pandey. It has been argued that the complainant Dr. Sita Ram Paswan allured accused Rakesh Kumar Pandey for a job FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 43 of 65 prospective in a Safdarjung Hospital and on the pretext of the same, he took Rs. 7 Lacs from the accused. Further, that the complainant did not felicitate the job of the accused Rakesh Kumar Pandey, it was accused who asked the complainant for return of money and for the same, the complainant issued two cheques which were dishonored and therefore it was accused Rakesh Kumar Pandey who had filed two cases u/sec. 138 NI Act against the complainant. It has been argued that on the date of incident, it was the complainant who had asked the accused Rakesh Kumar Pandey to visit his house and when accused Rakesh Kumar Pandey visited the house of complainant, he started abusing the accused and entered into a quarrel but it was the accused Rakesh Kumar Pandey who came out of the house of the complainant but complainant assaulted him and did not return his money. It has been argued that on the next day 08.08.2016, the accused lodged a FIR against the complainant which was FIR No. 431/2016, PS Jaitpur and that he has been falsely implicated in the present matter and he had not committed any offence and had never passed any castiest remarks upon the complainant. It has been further argued that the accused did not trespass into the premises of the complainant and did not cause injuries to him and never threatened him. It has been argued that since accused Rakesh Kumar Pandey was employee of accused Angad Raj Sharma and Devraj Sharma, complainant has falsely implicated him in the present matter and he is liable to be acquitted.

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ARGUMENTS ON BEHALF OF ACCUSED ANGAD RAJ SHARMA AND DEV RAJ SHARMA.

32. It has been argued on behalf of aforesaid accused persons that they have been falsely implicated in the present matter by the complainant and that they had never met the complainant prior to filing of the present complaint. It has been argued that co-accused Rakesh Kumar Pandey was their employee and since Rakesh Kumar Pandey had filed cases u/sec. 138 NI Act against the complainant, it was the complainant who had made false allegations upon the aforesaid accused persons that is when, both accused persons at the alleged time of incident were present in their shop and the same was verified by PW3 ACP Dhal Singh. It has been argued that during investigation, both the accused persons had cooperated in the investigation and accused Angad Raj Sharma had handed over the CD containing cctv footage of his shop which showed his presence at the time of the incident at his shop. It has been argued that the aforesaid cctv footage has been verified by the IO and testimony of PW3 proves that same. It has been argued that plea of alibi taken by both the aforesaid accused persons have been proved by examining witnesses DW1 and DW2 and therefore the case of the prosecution does not stand proved against the accused persons and they are liable to be acquitted. It has been argued that the accused persons had never committed any offence and

were not present at the time of incident and therefore, are liable to be acquitted.

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33. I have heard Ld. Addl. PP for the State and Ld. Counsels for the accused persons and have carefully gone through the record.

THE LAW PERTAINING TO THE OFFENCES UNDER SC&ST ACT.

34. The Hon'ble Supreme Court and various Hon'ble High Courts, in several judgments have consistently held that to constitute an offense under section 3(ii)(iii)(ix)(x), the insult must be directly related to the caste identity of the complainant and must occur in a public place with the intention to humiliate or intimidate. In the present case, these conditions are not fulfilled. It has been a well-established principle of law that if the allegations do not disclose the essential ingredients of the offence, the court has the power to dismiss the case of complainant. As per Sec. 3 of The Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989, whoever not being a member of scheduled caste or scheduled tribes, commits any offence as described from Sec. 3(a) to Sec. 3(z)(c) of the said Act, shall be punishable with imprisonment for a term which shall not be less than six months but which may extend to five years and with fine. Further, it was incumbent upon the complainants to substantiate their allegations of being derogated by the accused persons. It was required for the complainant to show that accused persons intentionally insulted or intimidated them with the intent to humiliate them being a member of scheduled caste or scheduled tribe category or that he was abused in public view by his caste name.

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35. The judgment in the case of Hitesh Verma Vs. State of Uttarakhand (2020) 10 SCC 710, (para 14), wherein it has been held that :-

"14. Another key ingredient of the provision is insult or intimidation in "any place within public view". What is to be regarded as "place in public view" had come up for consideration before this Court in the judgment reported as Swaran Singh & Ors. v. State through Standing Counsel & Ors. The Court had drawn distinction between the expression "public place" and "in any place within public view". It was held that if an offence is committed outside the building e.g. in a lawn outside a house, and the lawn can be seen by someone from the road or lane outside the boundary wall, then the lawn would certainly be a place within the public view. On the contrary, if the remark is made inside a building, but some members of the public are there (not merely relatives or friends) then it would not be an offence since it is not in the public view. The Court held as under :-

"28. It has been alleged in the FIR that Vinod Nagar, the first informant, was insulted by Appellants 2 and 3 (by calling him a "chamar") when he stood near the car which was parked at the gate of the premises. In our opinion, this was certainly a place

within public view, since the gate of a house is certainly a place within public view. It could have been a different matter had the alleged offence been committed inside a building, and also was not in the public view. However, if the offence is committed outside the building e.g. in a lawn outside a house, and the lawn can be seen by someone from the road or lane outside the boundary wall, the lawn would certainly be a place within the public view. Also, even if the remark is made inside a building, but some members of the public are there (not merely relatives or friends) then also it would be an offence since it is in the public view. We must, therefore, not confuse the expression "place within public view" with the expression "public place". A place can be a private place but yet within the public view. On the other hand, a public place would ordinarily mean a place which is FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 47 of 65 owned or leased by the Government or the municipality (or other local body) or gaon sabha or an instrumentality of the State, and not by private persons or private bodies."

36. The judgment in the case of Daya Bhatnagar & Ors. Vs. State, Crl. W. No. 402/2001 Decided on 17.01.2004 (para 19) , wherein it has been held that :-

"19. The SC/ST Act was enacted with a laudable object to protect vulnerable section of the society. Sub-clauses (i) to

(xv) of Section 3(i) of the Act enumerate various kinds of atrocities that might be perpetrated against Scheduled Castes and Scheduled Tribes, which constitute an offence.

However, Sub-clause (x) is the only clause where even offending "utterances" have been made punishable. The Legislature required 'intention' as an essential ingredient for the offence of Insult', 'intimidation' and 'humiliation' of a member of the Scheduled Casts or Scheduled Tribe in any place within 'public view'. Offences under the Act are quite grave and provide stringent punishments. Graver is the offence, stronger should be the proof. The interpretation which suppresses or evades the mischief and advances the object of the Act has to be adopted. Keeping this in view, looking to the aims and objects of the Act, the expression "public view" in Section 3(i)(x) of the Act has to be interpreted to mean that the public persons present, (howsoever small number it may be), should be independent and impartial and not interested in any of the parties. In other words, persons having any kind of close relationship or association with the complainant, would necessarily get excluded. I am again in agreement with the interpretation put on the expression "public view" by learned brother Mr. Justice B.A. Khan. The relevant portion of his judgment reads as under:

FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 48 of 65 "I accordingly hold that expression within 'public view' occurring in Section 3(i)(x) of the Act means within the view which includes hearing, knowledge or accessibility also, of a group of people of the place/locality/village as distinct from few who are not private and are as good as strangers and not linked with the complainant through any close relationship or any business, commercial or any other vested interest and who

are not participating members with him in any way. If such group of people comprises anyone of these, it would not satisfy the requirement of 'public view' within the meaning of the expression used."

37. The law pertaining to the offence under SC& ST Act, 1989, has been discussed in the following judgment of hon'ble higher courts. The judgment in the case of Khuman Singh Vs. State of Madhya Pradesh (2020)18 SCC 763, wherein, in 'para 11' it has been mentioned;

11."the next question falling for consideration is whether the conviction u/sec. 3 (2)(v) of the SC&ST Act (Prevention of Atrocities) Act, can be sustained ? The deceased belongs to "Khangar" caste and in a wordy altercation, the appellant accused is set to have called the deceased by his caste name "Khangar" and attacked him with an axe. Calling of the deceased by his caste name is admittedly in the field when there was a certain quarrel regarding grazing of the buffaloes.

12. From the evidence and other material on record, there is nothing to suggest that the offence was committed by the appellant only because the deceased belonged to a scheduled caste."

38. Further, in the case titled Puran Chand Gupta & Ors. Vs. State of FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 49 of 65 NCT of Delhi & Anr, 2022 SCC Online Delhi 695 , wherein it has been stated "Legislative Intent Underlying the SC/ST Act :-

30. Since, quashing of the FIR wherein the offence has been stated to be committed under Section 3(1)(r) and (3) (1)(s) of the SC/ST Act is in question, it is pertinent to refer to the legislative intent behind the said legislation.

The intent can be gauged from the Statement of Objects and Reasons of the Act, which is mentioned hereunder:

"Statement of Objects and Reasons.--Despite various measures to improve the socio-economic conditions of the Scheduled Castes and the Scheduled Tribes, they remain vulnerable. They are denied number of civil rights. They are subjected to various offences, indignities, humiliations and harassment. They have, in several brutal incidents, been deprived of their life and property. Serious crimes are committed against them for various historical, social and economic reasons. 2. Because of the awareness created amongst the Scheduled Castes and the Scheduled Tribes through spread of education, etc. they are trying to assert their rights and this is not being taken very kindly by the others. When they assert their rights and resist practices of untouchability against them or demand statutory minimum wages or refuse to do any bonded and forced labour, the vested interests try to cow them down and terrorise them. When the Scheduled Castes and the Scheduled Tribes try to preserve their self-respect or honour of their women, they become irritants for the dominant and the mighty. Occupation and cultivation of even the Government allotted land by the Scheduled Castes and the Scheduled Tribes is resented and more often these people become victims of attacks by the vested interests. Of late, there has

been an increase in the disturbing trend of commission of certain atrocities like making the Scheduled Castes persons eat inedible substances like human excreta and attacks on and mass killings of helpless Scheduled Castes and the Scheduled Tribes and rape of women belonging to the Scheduled FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 50 of 65 Castes and the Scheduled Tribes. Under the circumstances, the existing laws like the Protection of Civil Rights Act, 1955 and the normal provisions of the Penal Code, 1860 have been found to be inadequate to check these crimes. A special legislation to check and deter crimes against them committed by non-Scheduled Castes and non-Scheduled Tribes has, therefore, become necessary."

31. The legislative intent has also been referred to by the Honmble Supreme Court in the case of Hitesh Verma v. State of Uttarakhand, (2020) 10 SCC 710, wherein the Honmble Court held as under: "10. The Act was enacted to improve the social economic conditions of the vulnerable sections of the society as they have been subjected to various offences such as indignities, humiliations and harassment. They have been deprived of life and property as well. The object of the Act is thus to punish the violators who inflict indignities, humiliations and harassment and commit the offence as defined under Section 3 of the Act. The Act is thus intended to punish the acts of the upper caste against the vulnerable section of the society for the reason that they belong to a particular community."

32. The long title of the Act makes it evident that the Act is intended to prevent the commission of offences of atrocities against the members of the Scheduled Castes and the Scheduled Tribes communities to provide for Special Courts and Exclusive Special Courts for the trial of such offences and for ensuring relief and rehabilitation of the victims of such offences. The object of the Act is to improve the socio-economic conditions of the Scheduled Castes and the Scheduled Tribes as they are denied their civil rights. Thus, an offence under the Act would be made out whenever a member of vulnerable section of society is subjected to indignities, humiliations, and harassment.

33. The founding fathers of the Constitution were conscious of the harsh realities of the society and the FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 51 of 65 discrimination that the members of the Scheduled Castes and the Scheduled Tribes have been subjected to. At the time of independence, the lofty ideals of liberty, equality and fraternity were just utopian principles that were although guaranteed by law, but not present on ground. It was for the welfare of the downtrodden and vulnerable that the ameliorative and remedial measures were brought in to ensure that their civil rights are protected and equality in principle is adopted in practice.

34. One of the objectives of the Preamble of Constitution is "fraternity assuring the dignity of the individual and the unity and integrity of the nation". The Preamble did not originally contain the expression "fraternity" rather it was subsequently inserted by the Drafting Committee. It is relevant to refer to the explanation given by Dr. Bhimrao Ramji Ambedkar for the word "fraternity" wherein he stated that "fraternity means a sense of common brotherhood of all Indians". In a country like ours with the vivid diversity and the plethora of fault lines, it is necessary to emphasise and

re-emphasize that the unity and integrity of India can be preserved only by a spirit of brotherhood.

35. As stated by the Honµble Supreme Court in *Prathvi Raj Chauhan v. Union of India*, (2020) 4 SCC 727, to achieve this ideal of fraternity, three provisions namely - Articles 15, 17 and 24 were included in the Constitution of India. Despite these provisions being in place, the founding fathers of the Constitution expected the Legislature to enact effective measures to root out the caste-based discrimination in the society. First attempt by the Parliament to achieve that end was the enactment of the Untouchability (Offences) Act, 1955 wherein the burden of proof was fixed on the accused and not on the prosecution. Next came the Protection of Civil Rights Act, 1955, that made provisions for outlawing and penalising the social practices associated with untouchability and FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 52 of 65 disabilities. Subsequently, it was felt that the 1955 Act (which was amended in 1976) did not provide for sufficient deterrence to the 12 caste-based discriminatory practices against the Scheduled Castes and Scheduled Tribes communities.

36. Finally, to plug in the loophole, and to ensure the rights which the Constitution has guaranteed to the people, the Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Act, 1989 was enacted to prevent the commission of atrocities against members of Scheduled Castes and Tribes, to provide for Special Courts for the trial of such offences and for the relief and rehabilitation of the victims of such offences. The Act has also for the first time laid down an expansive definition of "atrocities" to cover the multiple manners through which the members of SC and ST have been humiliated, oppressed and downtrodden for centuries.

37. In light of the aforesaid, it is important to reiterate that unless the provisions of the Act are enforced in their true letter and spirit, and the legislative intent underlying the Act is manifested, vision of a society free of caste-based discrimination will only remain a distant dream. Principles as Enunciated in *Ramawatar v. State of Madhya Pradesh*.

39. In the case of *Swaran Singh & Ors. Vs. State*, 2008 AIR SCW 5758 (para 27), wherein, it has been held that :-

Ld counsel then contended that alleged act was not committed in a public place and hence does not come within the purview of section 3(1)(x) of the Act. In this connection it may be noted that said provision does not use the expression 'public place', but instead expression used is 'in any place within public view'. In our opinion there is a clear distinction between two expressions.

28. It has been alleged in the FIR that Vinod Nagar, the first informant, was insulted by appellants 2 and 3 (by FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 53 of 65 calling him a 'Chamar') when he stood near the car which was parked at the gate of the premises. In our opinion, this was certainly a place within public view, since the gate of a house is certainly a place within public view. It could have been a different matter had the alleged offence been committed inside a building, and also was not in the public view. However, if the offence is

committed outside the building e.g. in a lawn outside a house, and the lawn can be seen by someone from the road or lane outside the boundary wall, the lawn would certainly be a place within the public view. Also, even if the remark is made inside a building, but some members of the public are there (not merely relatives or friends) then also it would be an offence since it is in the public view. We must, therefore, not confuse the expression 'place within public view' with the expression 'public place'. A place can be a private place but yet within the public view. On the other hand, a public place would ordinarily mean a place which is owned or leased by the Government or the municipality (or other local body) or gaon sabha or an instrumentality of the State, and not by private persons or private bodies."

40. In the case of Manik Taneja & Anr Vs. State of Karnataka & Anr., 2015 AIR SCW 948 (para 14), wherein it has been held that :-

14. A reading of the definition of "Criminal intimidation"

would indicate that there must be an act of threatening to another person, of causing an injury to the person, reputation, or property of the person threatened, or to the person in whom the threatened person is interested and the threat must be with the intent to cause alarm to the person threatened or it must be to do any act which he is not legally bound to do or omit to do an act which he is legally entitled to do.

PROOF PERTAINING TO CASTE OF THE COMPLAINANT

41. Under the SC/ST Act, an essential element of the offence is that FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 54 of 65 the victim/complainant must belong to a Scheduled Caste or Scheduled Tribe. The burden lies on the complainant/prosecution to prove this essential fact. In the present matter, complainant/ PW4 has placed on record the copy of his caste certificate which was marked as Mark A-1 and subsequently, witness PW6 had stated that upon verification, the caste certificate of the complainant was found to be correct and upon verification it was found that the case of the complainant (dusadh) falls under the scheduled caste category and that the complainant Sita Ram Paswan belongs to scheduled caste and thereafter the caste certificate of the complainant was Ex.PW6/D.

42. On the other hand, it has been argued on behalf of Ld. Counsel for accused persons that the caste 'dusadh' of the complainant, even though is a recognized scheduled caste in the state of Bihar, the same is not a scheduled caste in the state of Delhi and therefore the complainant cannot be treated as victim under the SC&ST Act.

43. In view of the aforesaid contentions raised on behalf of accused persons, primarily court had to see if the complainant/ victim in the present matter Sita Ram Paswan belongs to scheduled caste category to be identified as 'victim' under the Act. The caste certificate of the complainant Sita Ram Paswan was received back duly verified and as per the verification report, the caste of the complainant was scheduled caste and the Scheduled Castes & the Scheduled Tribes (Prevention of

FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 55 of 65 Atrocities Act) 1989), is the act enacted by the Parliament for the offences committed against the members of SC&ST and provides for Special Courts for the trial of such offences and therefore, it was proved by the complainant that he belonged to schedule caste (dusadh). Therefore, as far as the element of complainant belonging to a schedule caste stands proved.

44. The accused persons have been charged to have committed the offence under U/Sec. 323/452/506/34 IPC & Section 3 (1)(r)(s) SC/ST Act 1989.

APPRECIATION OF EVIDENCE AND OFFENCES MADE OUT AGAINST ACCUSED PERSONS UNDER THE SC/ST ACT

45. In the present matter, accused persons have been facing trial for the offence committed under the SC/ST Act and prosecution/ complainant in support of his case examined as many as 12 witnesses.

TESTIMONY OF COMPLAINANT AND EYE WITNESSES.

46. To prove the offence under the SC/ST Act, the prosecution examined four witnesses. As per the complaint of complainant, he had named two persons to be present at his house when the incident occurred that is when one lady Ruby Jha and one person namely Pankaj Kumar Singh who had come to his house for taking some treatment. The aforesaid two witnesses were examined as PW1 and PW2. PW1 FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 56 of 65 Ruby Jha did not support the case of the complainant and stated that she had not seen any such incident and was not aware about the present matter and therefore did not support the story of prosecution and was declared hostile and therefore her testimony was not trustworthy and hence discarded.

47. PW2- Pankaj Kumar Singh also deposed that he was knowing complainant Sita Ram but had not seen the incident in question and he did not know any of the accused persons. The aforesaid witness also did not support the story of prosecution and hence, his testimony was not trustworthy and hence discarded.

48. PW4- Sita Ram Paswan/ complainant was the star witness of the prosecution who during the trial, initially did not appear before the court but subsequently was examined. The aforesaid witness mentioned regarding the incident and had also stated that the accused persons had come to his house along-with elder brother of accused Rakesh Kumar Pandey, two more persons namely Mahesh Yadav and Purnendu Kumar, however the complainant did not mention regarding the name of aforesaid persons in his complaint and was cross-examined in this regard but did not give any satisfactory reply. Further, the complainant had stated regarding the castiest remarks passed upon him by the accused persons, however the language mentioned by the witness in his testimony before the Court were never mentioned by him in his FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 57 of 65 complaint Ex.PW4/A and the witness was confronted by the accused persons in this regard and therefore even the testimony of star witness of the prosecution

remained uncorroborated and infact was contradictory to his complaint Ex.PW4/A. More so, the aforesaid witness PW4 had also mentioned in his testimony before the Court that the accused persons had given him beatings by use of Hockey and Danda that is when in his complaint Ex.PW4/A, he had mentioned that accused persons had given him beatings by use of danda. The testimony of the complainant was not corroborated with his complaint Ex.PW4/A and in fact that complainant improvised the same while deposing before the Court. Lastly, the accused persons in the present matter, have taken the defence that they have been falsely implicated in the present matter and PW4 during his cross-examination admitted that he had given two cheques to accused Rakesh Kumar Pandey and the same were dishonoured and for the same, proceedings were pending and further that he had not appeared in the aforesaid matter and had never joined investigation in the present matter after filing his complaint in the police station. In view of the aforesaid testimony of PW4 and the cross- examination conducted on behalf of accused persons, the deposition of PW4 was full of contradiction and hence was not trustworthy.

49. PW5- Meera who was the wife of the complainant and was present when the incident occurred, deposed that on 07.08.2016 at FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 58 of 65 around 10.45 pm, while she was outside her house with her dog and her husband PW4 was inside, at that time, six persons came to her house on a bike and started abusing PW4 and said "chamar bhangi", at that time, all accused persons entered in her house and gave beatings to PW4 and that accused persons had closed the gate of the room in which her husband was sitting and when she knocked, someone opened the door and she entered and found that her husband was being beaten. Subsequently, accused Rakesh Kumar Pandey dragged PW4 outside the house and remaining two accused abused her husband and when she intervened, accused persons did not stop and therefore she made a call at 100 number and also to one person namely Suresh who immediately reached the spot and tried to rescue PW4 and later on the police arrived. However, PW4 during his testimony has stated that on 07.08.2016 around 10.45 pm, he was present inside his house and his wife was outside and at that time, six persons came outside his house on bike and started abusing him by passing castiest remarks and the wife of PW4 objected and the accused persons asked PW5 "apne aadmi ko bahar nikal" and thereafter she got inside and bolted the door from inside, but the accused persons gave fist and leg blows on the door and broke opened the door and thereafter entered the house and gave beatings to PW4 and abused him by passing castiest remarks and that beatings were given by use of hockey and danda. The aforesaid testimony of both witnesses regarding the manner in which the incident occurred, is contradictory. Though, PW4 has stated that he was given beatings by FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 59 of 65 use of danda and hockey, PW5 did not depose regarding the same and infact only states that PW4 was being beaten. Further, PW5 during her cross-examination admitted that accused persons had abused her husband and passed castiest remarks while they were outside the house and the same were heard by several persons who had gathered on the spot, however she failed to examine any witness in respect to the same and subsequently stated that being night time, there was no public person present at the spot. There is no corroboration in the testimonies of PW4 and PW5 and therefore, testimony of PW5 is not reliable and discarded.

TESTIMONY OF FORMAL WITNESSES/ POLICE OFFICIALS

50. PW10- SI Kunji Lal was the First IO of this case and on 07.08.2016 at around 10.42 pm, DD No. 86A and 89A was received at PS Jaitpur and the same was pertaining to quarrel and thereafter HC Devi Saran reached the spot which was the house of complainant but complainant was not found and he was informed that the injured left for the hospital. Subsequently, he along-with Ct. Devi Saran reached the hospital and collected the MLC of injured and requested the complainant to give his statement who refused to give the statement and sought time to give it once he recovered and on 08.08.2016 both the injured were discharged and thereafter on 08.08.2016, PW10 SI Kunji Lal again went to the house of the complainant where complainant gave his written complaint upon which rukka was prepared and FIR was FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 60 of 65 registered. The witness deposed regarding the investigation conducted by him being the first IO of the present matter.

51. PW8 ASI Yashpal Singh was the Second IO and deposed that on 08.08.2016, ASI Kunji Lal handed over to him the copy of FIR and rukka and upon receiving of the same, he went to the spot and met the complainant and his wife Meera Kumari and prepared the site plan Ex.PW8/A and also recorded the supplementary statement of the complainant and his wife and on 26.08.2016, he visited the house of the complainant and met witnesses Pankaj Kumar and Ruby Jha and recorded their statement. The witness deposed the investigation conducted by him and admitted that the site plan did not bear the signature of the complainant and did not remember that if on 08.08.2016 the complainant and his wife informed regarding presence of eye witnesses Pankaj Kumar and Ruby Jha on the date of incident.

52. PW12- Inspector Lalit Kumar was the Third IO in the present matter and investigation was marked to him and after receiving the file, he tried to contact the complainant but was transferred.

53. PW11- ASI Nirdesh Kumar was the Fourth IO and received the investigation in the present matter on 03.02.2017 and thereafter reached the house of the complainant but the house was found locked. Thereafter, he visited the house of complainant on several occasions but complainant was not found. Subsequently, he got the caste certificate of FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 61 of 65 the complainant verified and upon verification the offence u/sec. SC&ST were added and the investigation was handed over to ACP Dhal Singh (PW3).

54. PW3- ACP Dhal Singh who was the Fifth IO in the present matter deposed regarding the investigation conducted by him and also the fact that accused Angad Raj Sharma and Dev Raj Sharma had provided the cctv footage of their shop which show that both of them were present at their shop and the same were verified by him. Further, PW3 had stated that during the entire investigation conducted by him, complainant Sita Ram Paswan never joined the investigation in this case.

55. PW7- HC Pauph Singh deposed that he was the duty officer and upon receiving complaint, got the FIR registered in the present matter and the rukka was brought by ASI Kunji Lal.

EXPERT WITNESSES

56. PW6- Kamruzzaman was SDO West Officer, Muzzafarpur Bihar who verified the caste certificate of the complainant and deposed regarding the caste of the complainant as 'dusadh' being scheduled caste.

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57. PW9- Bhunesh Kumar Sharma who was the MRT AIIMS and the MLC of both injured were exhibited as Ex.PW9/A and Ex.PW9/B. The concerned doctor who had prepared the MLC in this case, were never examined by the prosecution.

58. The aforesaid testimonies of the prosecution witnesses show that the eye witnesses stated by the complainant did not support the story of the prosecution. Further, there were material contradictions in the testimonies of PW4 and PW5 and even the alleged injuries received by PW4 were never proved as the concerned doctor did not appear in the present matter. Further, both accused persons namely Angad Raj Sharma and Dev Raj Sharma were successful in proving the plea of 'alibi' and therefore, their presence at the spot was not proved. The story of the prosecution was not proved beyond reasonable doubt. Further, the complainant did not examine any independent witness to substantiate his claims and therefore, the guilt of the accused persons was not proved beyond reasonable doubt. Further the complainant had made sweeping statements without substantiating the same by any cogent evidence. Therefore, in my considered view the allegations pertaining to passing of castiest remarks for the offence alleged are not made out against the accused persons since none of the public witnesses stated that the alleged incident occurred or that it occurred in a public place, within a public view.

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OFFENCES	MADE	OUT AGAINST	THE ACCUSED
323/452/506/34 IPC			U

59. In the wake of above mentioned appreciation and conclusion, I find that the complainant failed to substantiate even the allegations pertaining to offence u/s 323/452/506/34 IPC. PW4 had stated that accused persons entered his premises and bolted the door from inside and wrongfully confined him and gave him beatings and also extended threats, however, PW5 stated that she went inside and bolted the door from inside, to save herself and her husband and it was the accused persons who had broken opened the door. The aforesaid testimonies of both the witnesses were contradictory and was not corroborative and the doubt is created as to the manner in which the incident had occurred. Further, the concerned doctor who had prepared the MLC of PW4 and PW5 was never examined by the prosecution. More so, the MLC of PW5 does not show any visible injury. Further, the allegations pertaining to threats extended by the accused persons also does not show that the same created any fear in the mind of the complainant or his wife. Therefore, the ingredients for the offence u/sec. 323/452/ 506/34 IPC are not made out against the accused persons as the prosecution failed to establish the same by leading any cogent evidence.

60. Further, all the three accused persons have stated in their statement recorded u/s 313 Cr.P.C. regarding being falsely implicated as there was some quarrel between the complainant and the accused FIR No.430/2016 PS Jaitpur State Vs. Rakesh Kumar Pandey & Ors Page No. 64 of 65 persons. Accused Rakesh Kumar Pandey had taken the defence that he was falsely implicated since he had filed a case u/sec. 138 NI Act against the complainant. The aforesaid fact of case pending and enmity between the parties have not been denied by the witnesses examined by the prosecution i.e. PW4 and PW5. In view of the aforesaid, the aspect of false implication of accused persons cannot be ruled out and therefore, no offence u/s 323/452/506/34 IPC are made out against accused persons and the prosecution has failed to prove the guilt of accused persons beyond reasonable doubt.

61. Based on testimonies of prosecution witnesses/witnesses of complainant, it is seen that none of the allegations pertaining to passing of castiest remarks or commission of offence of wrongful confinement or criminal intimidation, stand proved against any of the accused persons. Accordingly, all the accused persons namely Rakesh Kumar, Angad Raj Sharma and Dev Raj Sharma, stand acquitted for all the offence.

File be consigned to Record Room after due compliance.

Announced In The

Open Court Today

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[Sheetal Chaudhary Pradhan]
ASJ-02, South-East/Saket/Delhi
11.12.2025(ak)

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